

# Harvir Singh Chauhan v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 · WRIT - C No. 5318 of 2023 · **Disposed; recovery withdrawn; fresh order under Supply Code**

## HEADNOTE

A recovery citation for electricity-theft dues having been withdrawn, the writ was disposed of with liberty to the respondents to pass a fresh order after notice, strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

## FACTUAL SUMMARY

Harvir Singh Chauhan petitioned the Allahabad High Court against a recovery citation dated 24 September 2022, issued by respondent no. 3, demanding electricity dues in a theft case. Counsel for the Electricity Department told the Court that the impugned recovery had been withdrawn and that a fresh order would be passed after notice to the petitioner. The petition was then taken up for disposal on that statement.

## HOLDING-UNITS

### HOLDING-UNIT · Electricity Supply Code, 2005

fresh order after withdrawal of a theft-dues recovery citation

#### HOLDING

Where the Electricity Department withdraws a recovery citation for theft dues and undertakes to pass a fresh order after notice, the writ is disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

**FLAG** The order does not number a clause; it refers only to the procedure prescribed under the Electricity Supply Code, 2005.

## PRINCIPLE TAGS

**UP-2005::procedure** The Court did not sustain or quash the theft dues. It recorded withdrawal of the citation and required any fresh order, after notice, to follow the procedure prescribed under the Electricity Supply Code, 2005. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER ELECTRICITY WAS STOLEN AND WHETHER ANY SUM IS RECOVERABLE

The recovery citation was withdrawn. The Court did not examine the theft allegation or the dues and left any fresh order to the respondents. ¶ 1